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INDIA NON JUDICIAL

Government of Karnataka

Rs. 100

e-Stamp

Certificate No.	:	IN-KA13880529012076X
Certificate Issued Date	:	04-Dec-2025 12:58 PM
Account Reference	:	NONACC (FI)/ kakscsa08/ KASAVANAHALLI2/ KA-JY
Unique Doc. Reference	:	SUBIN-KAKAKSCSA0833234414742659X
Purchased by	:	MADHUR AHUJA
Description of Document	:	Article 30(1)(i) Lease of Immovable Property - Not exceeding 1 year in case of Residential property
Property Description	:	LEAVE AND LICENSE AGREEMENT
Consideration Price / Others (Rs.)	:	20,000 (Twenty Thousand only)
First Party	:	VIJAY KUMAR KAKARIA and VARUN KAKARIA
Second Party	:	MADHUR AHUJA
Stamp Duty Paid By	:	MADHUR AHUJA
Stamp Duty Amount(Rs.)	:	100 (One Hundred only)

Karnataka Co-operative Societies Association (R) Branch Kasavanahalli Bangalure 560035

04-DEC-2025 12:58 PM

Please write or type below this line

LEAVE AND LICENSE AGREEMENT

THIS LEAVE AND LICENSE AGREEMENT is made at **Bangalore** on this **04th day of December, 2025** by & between:

MR. VIJAY KUMAR KAKARIA and VARUN KAKARIA

RESIDENT OF APARTMENT NO.12D, TOWER 'O' CENTRAL PARK II RESORTS BELGRAVIA, SECTOR 48, GURGAON-122018 (HARYANA) (hereinafter refer to as the LESSOR, which expression shall unless repugnant to the context shall be deemed to mean and include its successors, legal representative, executor, heirs, administrators, transferees and assigns)

Statutory Alert:
1. The authenticity of this Stamp certificate should be verified at 'www.shcilestamp.com' or using e-Stamp Mobile App of Stock Holding. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Competent Authority.

AND

Mr. MADHUR AHUJA (Aadhaar No.367254070866
S/o. Shri Om Prakash Ahuja R/o. UU-25 PitamPura, Saraswati Vihar, New delhi-110034 (hereinafter referred to as "the LICENSEE", which expression unless repugnant to the context mean and include their successors, administrators, executors, legal representatives, assignees) of the **OTHER PART.**

WHEREAS the LICENSOR are the joint & lawful owners in possession of a residential apartment bearing unit no. **B-506, Purva Sunshine Apartments, Sarjapur Road, Bangalore-560035 (5th Floor) consisting of 3 bhk and three bathroom and a covered parking (1767 sq.ft).** The LICENSOR jointly & exclusively stands as the present / current owners of the above said property.

WHEREAS the LICENSOR have agreed to grant Leave and License to the LICENSEE for the portion comprising of three bedrooms, three bathrooms, one drawing cum dining room, one kitchen, balconies and one Car Parking No_____, (hereinafter referred to as the "Demised Premises") subject to and on the terms and conditions contained in this Agreement.

WHEREAS the LICENSOR has represented that the Demised Premises is free from all encumbrances and the LICENSOR have a clean and unrestricted right to the Demised Premises and is legally competent to enter into this Leave and License Agreement (The Agreement) on the terms and conditions contained herein.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. That the LICENSOR being legally authorized to let out the Demised Premises do hereby grant, demise and agreement unto the LICENSEE, the Demised Premises subject to the covenants, conditions and agreements contained in this Agreement.

2. That the Leave & License agreement shall be for a period of **11 months** commencing from **5th October 2025 to 4th September 2026** (hereinafter referred to as the "Agreement Period").

3. The present Leave & Licence agreement cannot be terminated by the LICENSEE before expiry of first **6 months period** i.e. the entire first 6 months period from the date of commencement of this agreement i.e. **5th October 2025 to 4th September 2026** shall be considered as a **(lock-in period).** In case the LICENSEE chooses to vacate the premises at any point of time prior to the expiry of lock-in period, in this event the LICENSEE shall be liable to pay the agreed amount for the balance and un-expired stipulated (lock in period). However, the LICENSOR shall not be entitled to terminate the agreement during the entire lock-in period as long as the LICENSEE regularly pays amount and complies with terms and conditions mentioned in this Agreement.

AND

Mr. MADHUR AHUJA (Aadhaar No.367254070866
S/o. Shri Om Prakash Ahuja R/o. UU-25 PitamPura, Saraswati Vihar, New delhi-110034
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4. That from **5th October 2025 to 4th September 2026** i.e. the period of this agreement; the LICENSEE shall pay to the LICENSOR for the Demised Premises a monthly compensation amount of **Rs.52,500/- (Rupees Fifty Two Thousand Five Hundred only) excluding maintenance charges (CAM, CAE, Club usage charges, AC's servicing charges etc. as per actual maintenance bill)**, subject to deduction of TDS i.e. tax deducted at source as per applicable laws which shall be payable by the **5th** day of each calendar month in advance of every month of the agreement. The LICENSEE shall make payment of advance amount by **ECS** i.e. **RTGS / NEFT / IMPS or by making a standing instruction for ECS** as per the following account details mentioned below:

VIJAY KUMAR KAKARIA STATE BANK OF INDIAN A/C NO.10185783110

The above Leave and Licence Agreement can be renewed for a further period of 11 months with **10%** increase in Licence fee. The renewal is subject to the approval of Licensor.

5. The LICENSEE shall pay every month's compensation in advance by the **5th** day of each calendar month to Mr. **VIJAY KUMAR KAKARIA** as mentioned above.

In case due to any reason whatsoever, there is a delay in the compensation payment beyond 5th of a particular calendar month, it shall be payable with a delayed interest @18% pm by the LICENSEE to the LICENSOR on pro rata basis for the no. of days of delay beyond 25th of the same month.

And in case due to any reason whatsoever, there is a non-payment of compensation for 2 (two) consecutive months from the LICENSEE, then this Agreement shall stand automatically terminated & the LICENSEE shall have to hand over the apartment back to the LICENSOR on immediate basis without any further notice.

6. That **1 month** prior to expiry of the 11 months agreement period both the parties can mutually discuss on renewal of this Leave & License Agreement as per above mentioned terms & extend this agreement for a further period of 11 months, but if for any reason whatsoever the renewal is not executed, then before or till the expiry of the 11 months agreement period i.e. post initial 6 months lock-in period as mentioned above, either party shall have the right to terminate this Agreement by giving a **1 month** advance notice in writing or by email to the other party.

Email ids of both parties for communication:

LICENSOR: **Mr. VIJAY KUMAR KAKARIA (v53kakaria@gmail.com)**

LICENSEE: **Mr. Madhur Ahuja (ahuja.madhur@gmail.com)**

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LICENSOR: **Mr. VIJAY KUMAR KAKARIA (v53kakaria@gmail.com)**

LICENSEE: **Mr. Madhur Ahuja (ahuja.madhur@gmail.com)**

It is agreed between the Parties that the LICENCEE shall further provide the LICENSOR a sum of Rs. 2,50,000/- (Indian Rupees Two Lakh Thirty Thousand Only) as non-interest-bearing security deposit(already received) which shall be refunded by the LICENSOR to the LICENSEE at the time of handing over possession of the Demised premises to the LICENSOR, after clearing all the outstanding dues, if any, towards Electricity Charges, Telephone Charges, Cable TV Monthly Subscription Charges and damages applicable as per this Lease. The LESSOR confirms receipt of security deposit for Rs. 2,50,000/-by cheque/Online.

7. That the Demised Premises shall be used by the LICENSEE for the exclusive purpose of residence of **Mr. MADUR AHUJA AND HIS IMMEDIATELY FAMILY**. No commercial / industrial / business / illegal activity shall be carried out by the LICENSEE at any point of time during the existence of this Agreement & if found so; the LICENSOR have the right to immediately terminate the agreement & take back the vacant, physical & peaceful possession of the said property from the LICENSEE.

8. The LICENSEE shall not sub-let, assign or otherwise part with the possession of the Demised Premises to any-one else or use the Demised Premises for any other person or purpose.

9. That the LICENSEE shall pay maintenance charges to the LICENSOR/directly to the maintenance agency i.e. Purva Sunshine Apartments (RWA office)/ PFML El Maintenance Account including common area maintenance, common area electricity, etc. as per actual maintenance bills received from the RWA office.

10. That the LICENSEE shall pay all the charges for the electricity (power and light), gas and water consumed in the Demised Premises during the period of this Agreement levied by the municipal or local authorities from time to time as per the readings and meters separately installed for the Demised Premises. The LICENSEE shall however, not be liable for outgoing of any kind whatsoever for the period prior to the commencement date of this Agreement or after the expiry or termination thereof.

11. The LICENSEE shall keep the interior of the said premises including sanitary, modular fittings, doors and windows in good and tenantable conditions without damage/ breakages of any fittings and fixtures (Annexure A), if any damage is caused by LICENSEE, the LICENSOR is allowed, to deduct the amount equivalent to cover up the damage from the LICENSEE'S deposit subject to normal wear and tear. In case damage/ breakage caused by LICENSEE exceeds the LICENSEE'S deposit, LICENSEE will pay the remaining amount.

12. That the LICENSEE have satisfied themselves that all the appliances, water, sanitary, electrical and gas installations are in good working order and also no mirrors and glass panes are broken or missing. Hereafter, the LICENSEE shall be responsible to maintain and restore them in the same condition, normal wear and tear accepted.

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13. That the LICENSEE shall not carry out any structural additions or alterations to the Demised Premises without the written consent of the LICENSOR. The LICENSEE, however, shall have the right to install extra air conditioner units (if required), coolers, exhaust fans and other electrical appliances and shall on the expiry or termination of the Agreement be entitled to remove all such units, appliances etc. At the LICENSEE expense, the LICENSEE shall patch up and paint the affected parts (walls/ doors etc.) of the house to the original condition and the same color tone at the expiration or early determination of this agreement.

14. That the LICENSEE shall not keep in the Said Premises any animals, birds or pets without the written consent of the LICENSOR and shall be subject to the rules and regulations of the RWA/ relevant government authorities.

15. That the LICENSEE shall permit the LICENSOR or their duly authorized agents, etc. upon reasonable 24-48 hours7 days prior notice to enter upon the Demised Premises for the purpose of inspection and/or carry out any structural or major repairs as and when necessary at a mutually agreed time. It is understood that such repairs shall be carried out in a manner so as to cause least inconvenience and disturbance to the LICENSEE.

16. That the LICENSEE shall comply with all the rules, conditions and regulations, laws and bye laws of the local authorities/ society, municipal authorities or any statutory development authority or a Government department or agency with relation to the Demised Premises.

17. The LICENSEE shall bear the society moving in and moving out charges at the start and at the end of the tenancy respectively and the LICENSOR will not be responsible for the same.

18. That the LICENSOR shall pay all present and future corporation municipal rates, taxes, fees, levies and all other taxes, cesses, charges levied by the government and the local authorities as owner of the Demised Premises. The LICENSOR shall comply with all the laws, rules and regulations of the government and the local authorities as an owner would do.

19. That the LICENSOR confirm that the Demised Premises has been connected to or provided with electricity, water and gas supply in the Demised Premises for the consumption of the LICENSEE in a satisfactory manner, subject to force majeure circumstances. The LICENSOR hereby agree that the benefit of such use of available electricity, water and gas supply shall not be disturbed, withdrawn or interrupted by any action of the LICENSOR.

20. It is expressly agreed and understood between the parties hereto that this agreement does not create nor is intended to create any tenancy or sub tenancy rights in favour of the LICENSEE and the LICENSEE do not have and shall not claim any right or tenancy or sub

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tenancy or any other rights in respect of the said premises or any part thereof at any time. It is hereby expressly agreed that the LICENSEE'S status under this agreement is and shall be that of a mere LICENSEE and nothing more.

21. The LICENSOR covenants with the LICENSEE:

(a) That the LICENSEE paying the amount herein reserved and observing and performing the terms and conditions on the part of the LICENSEE as herein contained, shall be entitled to peacefully and quietly hold and enjoy the demised premises during the period of this agreement free of any interference, interruption or objection whatsoever from the LICENSOR or any person or persons whatsoever claiming through, under or in trust for the LICENSOR.

(b) That the LICENSOR shall indemnify and keep the LICENSEE fully indemnified and saved harmless from and against all damages, costs and expenses caused to or incurred by the LICENSEE, as a result of any defect in title of the LICENSOR which disturbs or interferes with the possession and enjoyment of the Demised Premises by the LICENSEE.

22. The LICENSOR covenants with the LICENSEE and declares as under:

(a) That the Demised Premises is free from all encumbrances whatsoever and that as of now they have not entered into any agreements or arrangements in any way disposing of or dealing with the Demised Premises or any part thereof/or the LICENSOR's right, title and interest in the Demised Premises, in any manner whatsoever.

(b) That the LICENSOR have the full right, absolute power and authority to deal with the Demised Premises upon such terms as they deem fit including by way of agreement upon the terms herein contained.

(c) That during the term of the Agreement post lock-in period up to the expiry of this Agreement or earlier termination, in future if the LICENSOR disposes / sells of the Demised Premises to any other person or a third party, then in that event, this Agreement & Agreement Period will not be transferred to & binding upon the new buyer / third party of this Demised Premises.

23. That the LICENSEE shall on expiry of the agreement period or earlier termination, hand over the peaceful, vacant & physical possession of the Demised Premises to the LICENSOR in good condition subject to normal wear and tear arising from day to day use or from such causes as are beyond the control of the LICENSEE viz., fire, earthquake, floods etc.

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24. If for any reason, the LICENSEE defaults and/or fails or neglects to vacate or handover the peaceful, vacant & physical possession of the demised premises to the LICENSOR on expiry or earlier termination of this Agreement, then without prejudice to the other rights and/or remedies which the LICENSOR may have against the LICENSEE, the LICENSOR shall be entitled to claim and recover from the LICENSEE and the LICENSEE hereby covenants with the LICENSOR to pay to the LICENSOR in addition to the monthly amount and other amounts payable by the LICENSEE under this Agreement, a sum of Rs. 5,000/- (Rupees Five Thousand Only) per day for such occupation commencing from the effective date of the expiry / termination of the Agreement up to the date on which the LICENSEE actually vacates the demised premises and hands over the peaceful, vacant & physical possession of the demised premises to the LICENSOR.

25. That this Agreement has been executed currently on a Rs. 100/- stamp paper as per mutual consent of both the parties.

26. The LICENSOR shall provide signed amount receipts to the LICENSEE upon payment of monthly amount if required by the LICENSEE.

27. That in the event of dispute, if any, the Leave and License Agreement is subject to the jurisdiction of the Courts in **Bangalore (Karnataka)**

In witness whereof the LICENSOR and the LICENSEE have hereunto subscribed their hands on the date stated above.

WITNESSES:

1. USHA KIRAN
1207/25 Central Apartments
Sec 4, Gurgaon

LICENSOR Authorised Signatory
(VIJAY KUMAR KAKARIA and VARUN KAKARIA)

2.

LICENSEE
(MADHUR AHUJA)